



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Jeanie Vetter, PLA, Parks and Greenway Planner

Subject: Real Estate Purchase Agreement between Trace G. Lewark and Mary J. Lewark and the City of Cheyenne for the purchase of real property located at 700 Gettysburg Drive, City of Cheyenne, consisting of approximately 189,921.6 square feet, more or less and associated access and utility easements.

Date: August 23, 2023

Background:

The purpose of this Real Estate Purchase Agreement is to purchase property for the Sun Valley to Kiwanis Park Greenway connection. The land will also be used as Land and Water Conservation Fund (LWCF) conversion property for the 2.5-acre site of the new fire station being constructed on Converse Avenue. The appraised value of the property is \$245,000.00 and funding will come from 2021 6th Penny for Greenway Expansion. For the remaining Lewark property a 40-foot width shared access easement will be granted to the City and for the City owned property a 10-foot width utility easement will be granted to the Lewarks.

Enclosures:

Real Estate Purchase Agreement

Easement Agreements and Exhibits

Sun Valley to East (Kiwanis) Park Corridor Exhibit

REAL ESTATE PURCHASE AGREEMENT

THIS REAL ESTATE PURCHASE AGREEMENT (the "Agreement") is made and entered into this _____ day of _____, 2023, by and between Trace G. Lewark & Mary J. Lewark, 814 McGovern Avenue, Cheyenne, Wyoming 82001 (the "Seller"), and the City of Cheyenne, a municipality organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 (the "City").

WITNESSETH:

WHEREAS, the City wishes to secure, for public purposes, the real property legally described as:

A tract of Land situated in the SE $\frac{1}{4}$ SE $\frac{1}{4}$ and the SW $\frac{1}{4}$ SE $\frac{1}{4}$ of Section 35, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Commencing at the southwest corner of said Section 35; thence 77°50'00", grid azimuth from North, City of Cheyenne Datum, a distance of 2406.81 feet to the point of beginning, said point also being a point on the South line of Sun Valley Addition Fourteenth Filing; thence 55°40'30", along the southerly line of said Sun Valley Addition Fourteenth Filing, a distance of 457.14 feet; thence 145°32'22", a distance of 129.07 feet; 51°52'57", a distance of 567.85 feet; thence 325°40'30", a distance of 91.51 feet, to a point on the South line of said Sun Valley Addition Fourteenth Filing; thence 55°40'30", along said South line, a distance of 558.51 feet, to the West line of Chukker Ridge 2nd Filing; thence 145°33'02", along said West line, a distance of 160.26 feet; thence 235°43'23", a distance of 1582.13 feet; thence 325°23'33"; a distance of 158.94 feet to the point of beginning. Containing 4.36 acres more or less.

together with the Seller's rights, privileges, interests and appurtenances related to said real property, including, but not limited to, all right, title and interest in and to adjacent streets, alleys, and rights-of-way, all of which is hereinafter referred to as the "Real Property;"

WHEREAS, the Seller is the owner of the above-described Real Property which is generally located at 700 Gettysburg Drive, City of Cheyenne, consisting of approximately 189,921.6 square feet, more or less; and

WHEREAS, the Seller is willing to sell to the City and the City is willing to purchase from Seller the Real Property upon the terms and conditions hereinafter stated.

NOW, THEREFORE, for good and valuable consideration, the receipt of which is hereby acknowledged, the parties hereto agree as follows:

1. *Purchase and Sale.* Seller agrees to sell to the City and the City agrees to purchase from Seller:

1.1. The Real Property, described above.

1.2. All licenses, permits and franchises issued by any governmental authority to or in favor of Seller and pertaining to the ownership, development or use of the Real Property, if any;

1.3. All contract rights and general intangible rights pertaining to the ownership, development or use of the Real Property, if any;

1.4. All improvements, structures and fixtures situated on the Real Property which will be conveyed in an "as is" condition without any representations or warranties relating to their physical condition and without ascribing any value to them;

1.5. All fixtures, equipment and other personal property of every kind and nature now installed, located, situated or used in, on, or about, or in connection with the operation, use, or enjoyment of the Real Property; and,

1.6. All: (i) contracts or agreements affecting or relating to the Real Property, but only to the extent the City elects to take an assignment thereof; (ii) licenses, permits or similar documents; (iii) plans, drawings, specifications, surveys, engineering reports, and other technical reports or descriptions of the Real Property, to the extent Seller has any in its possession; and (iv) insurance contracts or policies which pertain to the Real Property, but only to the extent the City elects to take an assignment thereof.

1.7. Prior to closing, the Seller shall pay, when due and payable, all real property taxes and assessments asserted against the Real Property for the current year and for all prior years. All such taxes and assessments for the current year will be apportioned between the parties on a pro rata basis as of the date of closing.

2. *Purchase Price.*

2.1. The purchase price to be paid by the City to Seller for the Real Property and all of the Seller's interests in said Real Property, as described in Section 1 of this Agreement, is two hundred forty-five thousand dollars (\$245,000) (the "Purchase Price"), subject to proration and adjustments as provided herein.

2.2. The Purchase Price shall be paid to Seller or, with written authorization, to Seller's designee, in full at the time of Closing, subject to pro-rations and adjustments, provided, however, that the City's duty to pay the Purchase Price at Closing is subject to the requirement that the Seller complete an IRS Form W-9 and otherwise cooperates with the City in reporting the Purchase Price and the other terms and conditions of this Agreement to the Internal Revenue Service as required by law.

2.3. Prior to the date of Closing, Seller shall secure the release and discharge of all mortgages, liens, assessments, leases, rental agreements, advertising sign leases, if any, and other claims which encumber the Real Property. The City shall have the right to cancel this Agreement in the event Seller is unable or otherwise fails, neglects or refuses to convey good and marketable title to the City in accordance with the terms and conditions of this Agreement.

2.4 After the date of Closing, the Parties agree that, upon construction of the Greenway adjacent to the Seller's remaining real property, the City agrees to purchase and construct a six (6) foot privacy fence along the length of Seller's adjoining property that abuts the Greenway.

3. *Title.*

3.1. Prior to Closing, the City shall have the right to obtain a Title Commitment for the Real Property (the "Title Commitment") at the City's sole cost and expense. In the event the Title Commitment shows that the Seller is not vested with good, marketable and insurable fee simple title to the Real Property, or that the Real Property is subject to liens, encumbrances, taxes or assessments which will not be discharged prior to Closing, the City shall have the right, in its sole and absolute discretion, to declare this Agreement null and void pursuant to Section 3.2 of this Agreement. Alternatively, the City may accept the Real Property, subject to such matters as set forth on Exhibit "A" attached to this Agreement (collectively, the "Permitted Exceptions"). The condition of title as described in this Section 3.1 shall be the standard of marketable title that Seller shall deliver at the Closing. If Seller delivers such title and except for the Permitted Exceptions as set forth in Exhibit "A", such title will be satisfactory and acceptable to the City under Sections 3.4 and 7.2 herein.

3.2. Prior to Closing, the City shall have the right to obtain a survey (the "Survey") of the Real Property, which Survey shall be prepared at the City's sole cost and expense. Seller shall grant to the City, and its employees and agents, access to the Real Property sufficient for the preparation of the Survey, including without limitation: (i) the actual dimensions of, and area within, the Real Property, (ii) the location of any easements, setback lines, encroachments, or overlaps thereon and the outside boundary lines of all improvements; (iii) all easements, setback lines, and other matters referred to on the Title Commitment; (iv) access to and from the Real Property from any publicly dedicated streets or roads; and (v) any areas within the Real Property that have been designated by any federal, state or other governmental agency or body as being subject to special, or increased flooding hazards. If required by the City, the Survey shall be prepared and certified by a surveyor licensed in the State of Wyoming and, if required, shall be sufficient to allow issuance of an ALTA Extended Coverage Title Policy.

3.3. Within five (5) business days following the execution of this Agreement, Seller shall deliver to the City the following:

(a) True, complete and legible copies of all documents referred to in the Title Commitment to the extent that any such document has not been filed for record in the office of the Laramie County Clerk and ex-officio register of deeds;

(b) True, complete and legible copies of all documents that are known to Seller, that are not referred to in the Title Commitment, and that may affect the marketability of title to the Real Property;

(c) Any soils, geological, and engineering studies;

(d) Copies of any entitlements or permits relating to the development of the Real Property;

(e) True and complete copies or originals of any lease or occupancy agreements for any portion of the Real Property;

(f) Copies of environmental studies in the possession of Seller pertaining to the Real Property;

(g) Any notices of violations of law received by Seller during the period of time that Seller has owned the Real Property;

(h) All mortgages, notes and loan documents for any mortgage which encumbers the Real Property on the date hereof, which mortgages, notes, and loan documents shall be discharged by the Seller prior to closing; and

(i) Copies of any and all materials relating to pending or present litigation involving the Real Property.

3.4. The City shall have twenty (20) business days from the date of receipt of the Title Commitment referred to in Section 3.1 or twenty (20) business days following receipt of documents to be provided by the Seller pursuant to Section 3.3, whichever period is longer, in which to examine the same. If the City finds title to the Real Property to be other than as described in Section 3.1, hereof, the City shall, no later than the expiration of said period of twenty (20) business days, notify Seller in writing specifying the defect or defects; provided that, if the City fails to give Seller written notice of such defects before the expiration of said period of twenty (20) business days, the defects shown in the Title Commitment or in documents provided by Seller pursuant to Section 3.3 shall be deemed to be Permitted Exceptions and waived as title objections. The City may raise as additional objections, however, any defect first shown by any title update between the date of the Title Commitment and the Closing Date by giving Seller written notice of any such defect within five (5) business days after the City first has notice of same. If the City has given Seller timely written notice of defects that render the title other than as required by Section 3.1 of this Agreement ("Defects"), and only in the event that the Defects were the result of Seller's action or caused by Seller's failure to act, Seller shall use its best efforts to cause such Defects to be cured within ten (10) business days following receipt of such notice. In the event the Seller fails to eliminate such Defects, the City shall have the right to terminate this Agreement pursuant to Section 5.1.

3.5. In the event the Seller creates any liens or encumbrances on the Real Property which are capable of being satisfied by the payment of money at the Closing, Seller shall be obligated to use the Purchase Price to cure the Defects.

3.6. The date for elimination of the Defects may be extended until Closing. In the event that Seller does not eliminate any Defect prior to or at the Closing, as the same may be extended under the preceding provision, the City shall have the option of either: (I) closing and accepting the title "as is," without reduction in the Purchase Price and without claim against Seller therefor, or (ii) cancelling this Agreement. In the event of a Defect that was not caused by Seller's action or caused by Seller's failure to act, Seller's only responsibility shall be to assign to the City Seller's Title Insurance Policy or Seller's rights under Seller's Title Insurance Policy, whichever is applicable, and cooperate with the City in obtaining the assistance of Seller's title insurer to remove the Defect.

3.7. Seller shall not create any new exceptions to title, and shall use its best efforts to prevent any other person or entity from creating new exceptions to title to the Real Property prior to Closing.

4. *Inspection Period.*

4.1. The City shall have thirty (30) calendar days following the date of execution of this Agreement (the "Inspection Period") to make such physical, zoning, marketing and other investigations, tests and studies, including but not limited to soil tests and borings, Phase I environmental surveys, utility availability surveys, and confirmation of subdivision map requirements and restrictions as the City may deem appropriate ("the City's Inspections"). The City's Inspections shall be at the City's sole cost and expense. The City shall repair any damage to the Real Property caused by the City's Inspections, reasonable wear and tear excepted. The City shall indemnify Seller and hold Seller harmless from any loss, cost or expense arising during or as a result of the City's Inspections.

4.2. The City, at its option, may conduct, at its sole cost, such independent investigation and inspection of the Property as the City shall deem reasonably necessary to ascertain the "environmental" condition of the Property ("the City's Environmental Investigation"). The City assumes no responsibility or liability as a result of any inaccuracies arising in or from the City's Environmental Investigation, and makes no representations or warranties whatsoever regarding (I) the completeness of the City's Environmental Investigation, or (ii) the truth or accuracy of the City's Environmental Investigation. If Seller conducts any environmental testing of the Real Property subsequent to the date of this Agreement, Seller shall provide the City with a copy of any report promptly after its receipt of same. Seller shall have no obligation to remedy any environmental problem on the Real Property.

5. *Termination.*

5.1. In the event the City, in the City's sole and absolute discretion, determines that any matter shown in the City's Inspections or Environmental Investigation is not satisfactory

either during or subsequent to the Inspection Period, the City shall have the right, at any time prior to the Closing, to terminate this Agreement by giving Seller written notice thereof (the "Termination Notice"), in which event, both parties shall be released from all further obligations under this Agreement.

6. *Conditions Precedent.*

6.1. The City's obligation to close this transaction shall be subject to fulfillment of the following conditions precedent:

(a) Seller shall, at Seller's sole cost and expense, obtain releases, at or prior to Closing, for any and all liens or encumbrances affecting the Real Property caused by Seller's action or caused by Seller's failure to act as of the date of Closing, pursuant to the terms of this Agreement;

(b) Seller shall not be in default in its obligations under this Agreement; and

(c) The City, at City's cost, obtains a title insurance commitment and Title Insurance Policy, in a form acceptable to the City (the "Title Policy"), insuring the City's title to the Real Property in accordance with the terms of this Agreement.

6.2. In the event any of the foregoing conditions precedent are not fulfilled as of Closing (or earlier date where specified otherwise), then the City shall have the option of either: (I) waiving the condition and closing "as is" without reduction in the Purchase Price or claim against Seller therefor, provided that Seller assigns to the City all of Seller's right, title and interest to the title insurance policy it obtained when it acquired the Property, or (ii) cancelling this Agreement by written notice to Seller.

7. *Seller's Representations and Warranties.*

7.1. Seller hereby represents and warrants to the City that the following are true statements as of the date of this Agreement and shall be true as of the date of Closing, and Seller agrees to deliver a certificate confirming that the following representations and warranties are true as of the date of the Closing.

(a) Seller is an individual or is a legal entity organized, existing and in good standing under the laws of the State of Wyoming, and is authorized to do business in the State of Wyoming, and Seller has full power and authority to sell and convey the Real Property and to execute this Agreement and such other documents described herein to be executed by Seller.

(b) Seller now has and will have at Closing good, marketable and indefeasible title in fee simple to the Real Property subject to the Permitted Exceptions and no party, except as herein set forth, has or shall have any right in, or to acquire, the Property.

(c) At Closing, the Real Property shall be free and clear of all encumbrances except the Permitted Exceptions as set forth in Article 3 of this Agreement.

(d) At Closing, the Real Property shall be free from any and all actions, suits, claims, assessments or proceedings pending or, to the knowledge of Seller, threatened that could materially adversely affect the ownership, operation, or maintenance of the Real Property or Seller's ability to perform hereunder.

(e) To the best of Seller's knowledge, the Property and Seller are not currently in violation of or subject to: (I) any existing, pending or threatened investigation or inquiry by any governmental authority; or (ii) any remedial obligations under any Applicable Laws pertaining to health or the environment (hereinafter sometimes collectively called "Applicable Environmental Laws"), including without limitation the Comprehensive Environmental Response, Compensation, and Liability Act of 1980, as amended ("CERCLA"), and the Resource Conservation and Recovery Act of 1976, as amended ("RCRA"). Seller shall have no obligation to remove or take any action to cure or remediate any environmentally hazardous material from the Real Property if any environmentally hazardous material is found on the Real Property.

(f) Seller does not have knowledge of any hazardous substances or solid wastes that have been disposed of or otherwise released on the Real Property. The terms "hazardous substance" and "release" shall have the meanings specified in CERCLA, and the terms "solid waste" and "disposal" or "disposed" shall have the meanings specified in RCRA; provided, to the extent that the laws of the State of Wyoming establish a meaning for "hazardous substance," "release," "solid waste," or "disposal" that is broader than that specified in either CERCLA or RCRA, such broader meaning shall apply.

(g) There are no parties in possession of any portion of the Real Property, whether as lessees, tenants at sufferance, trespassers or otherwise.

7.2. Seller shall not intentionally cause any of the representations and warranties contained herein to become materially incorrect, nor authorize any action which would do so. If subsequent to the execution of this Agreement and on or before Closing, Seller nonetheless has knowledge that any of the representations and warranties set forth herein have become incorrect in any respect (a "Discrepancy"), Seller shall promptly notify the City, in writing, of the occurrence of such event. The City shall have a right to approve or disapprove any such Discrepancy, which approval or disapproval shall be given by written notice delivered to Seller within ten (10) business days prior to the Closing for the City to evaluate the effect of such Discrepancy. If the City waives such Discrepancy, and elects to acquire the Real Property, Seller's representations and warranties contained herein shall be deemed to have been made as of the Closing, subject to the waived Discrepancy. If the City disapproves of the Discrepancy, and Seller fails to cure same, then upon written notice thereof to Seller this Agreement shall be terminated and all rights and obligations of the parties hereunder shall terminate.

7.3. Except for the representations of Seller set forth in Section 7.1, that shall survive for one (1) year from the Closing, the express representations and warranties made in this Agreement shall merge into any instrument or conveyance delivered at Closing and shall not survive Closing.

8. *Risk of Loss.*

8.1. The Property shall be conveyed to the City in substantially and materially the same condition as on the date this Agreement is executed by the City, ordinary wear and tear excepted, free of all tenancies or occupancies.

9. *Default Provisions.*

9.1. In the event of the wrongful failure or refusal of the City to close this transaction after sixty (60) calendar day's written notice, Seller shall be entitled to those remedies as may be provided by law.

9.2. In the event of Seller's failure to close in accordance with the terms and provisions of this Agreement for sixty (60) calendar days after written notice, the City, at its option and as the City's sole and exclusive remedy for default of Seller, shall have the right either to terminate this Agreement or seek specific performance of the Seller's obligations hereunder.

10. *Prorations.* All pro-ratable items, if any, shall be prorated as of the date of Closing.

11. *Closing Costs and Expenses.* At Closing, the City shall pay the premium for the Title Insurance Policy to be issued to the City. The City shall pay all costs associated with surveys, inspections and environmental assessments conducted by the City. The City shall pay recording fees necessary to record instruments received by the City at closing and one-half of miscellaneous closing costs and fees charged by the title insurance company selected by the parties to close this transaction. Each party shall pay that party's attorney's fees, if any. Seller shall pay recording costs with respect to documents necessary to clear title at Closing and all instruments received by Seller at closing.

12. *Closing.*

12.1. The closing of this transaction shall be held on the first business day occurring thirty (30) calendar days after the satisfaction of all of the conditions of Closing (the "Closing Date"). The title insurance company selected by the parties shall prepare the closing documents.

12.2. At Closing, Seller shall deliver: only to the Permitted Exceptions;

(a) A warranty deed duly executed and acknowledged in proper form for recording conveying to the City good and indefeasible fee simple title in and to the Real Property;

(b) An assignment of all rights appurtenant to the Real Property, if any, as provided in Section 1, above;

(c) A title affidavit and a mechanic's lien affidavit;

(d) An affidavit of exclusive possession;

(e) An affidavit pursuant to Internal Revenue Code Section 1445(b)(2) with respect to Seller's status as a non-foreign person;

(f) A certificate, or other document acceptable to the City, confirming Seller's authority to sell the Real Property; and

(g) Such other documents as are usually required to insure the City's title.

12.3. At closing, the City, at the City's expense, shall receive an Owner's Title Insurance Policy ("Owner's Title Policy"), in a form acceptable to the City, issued by a title insurance company authorized to do business in the State of Wyoming, in the full amount of the Purchase Price, insuring the City's indefeasible fee simple title to the Real Property, subject only to the Permitted Exceptions and the printed exceptions contained in the standard form of the Owner's Title Insurance Policy.

13. *Brokers.* The parties each represent and warrant to the other that no party to this transaction shall be responsible for the payment of any compensation or commission due any real estate agent, broker, salesman or finder unless that party has engaged the real estate agent, broker, salesman, or finder in writing. If a claim for compensation or commission in connection with this transaction is made by any agent, broker, salesman or finder claiming to have dealt through or on behalf of one of the parties hereto, such party shall indemnify, defend and hold harmless the other party hereunder from and against all liabilities, damages, claims, costs, fees and expenses whatsoever (including reasonable attorney's fees and court costs at all trial and appellate levels) with respect to said claim for compensation or commission. Anything to the contrary notwithstanding, the provisions of this paragraph shall survive the Closing and any cancellation or termination of this Agreement.

14. *Assignment.* Neither party shall have the right to assign this Agreement without the express written consent of the other Party.

15. *Access.* The City, and the City's agents and contractors, shall have the right during the term of this Agreement to enter upon the Real Property at any time for purposes of making investigations, tests and studies, provided that the City shall indemnify, defend, and hold harmless Seller from and against all liabilities, damages, claims, costs, fees and expenses whatsoever (including reasonable attorney's fees and court costs at all trial and appellate levels) for bodily injury, death, or physical damage to the Real Property caused by any such investigation test or study. The City shall provide written notification to the Seller at least three (3) business days prior to entering upon the Real Property for the purposes of making investigations, tests or studies. The foregoing indemnification shall survive the Closing and any cancellation or termination of this Agreement.

16. *Notices.* Any notices required or permitted to be given under this Agreement shall be delivered by hand or mailed by certified or registered mail, return receipt requested, or overnight delivery service in postage prepaid envelope, and addressed as follows:

If to the City: City of Cheyenne
 2101 O'Neil Avenue
 Cheyenne, WY 82001
 ATTN: City Parks and Greenway Planner

With copy to: City Attorney

If to the Seller: Trace G. Lewark & Mary J Lewark
 814 McGovern Avenue
 Cheyenne, WY 82001

17. *Operation of the Property.*

17.1. During the period between the date hereof and the Closing, Seller shall:

(a) Keep the Real Property in substantially the same repair and condition as of the date hereof, but excluding damages to the Property caused by the City's inspections or surveys;

(b) Comply with all state and municipal laws, ordinances, regulations, and orders relating to the Real Property;

(c) Comply with all the terms, conditions, and provisions of all liens, mortgages, agreements, insurance policies, and other contractual arrangements relating to the Real Property, make all payments due thereunder, and suffer no default therein;

(d) Without written approval of the City, neither negotiate nor enter into any new contract or modify any existing contract affecting the use or operation of the Real Property which cannot be terminated without charge, cost, penalty, or premium on or before the Closing;

(e) Operate, manage, and maintain the Real Property in the usual and customary manner for similar property; and

(f) Promptly notify the City in writing if any material change occurs in the occupancy or conditions affecting the Real Property.

18. *Miscellaneous.*

18.1. This Agreement shall be construed and governed in accordance with the laws of the State of Wyoming. Except for enforcement of the terms and conditions of this Agreement as between the parties, the City reserves all defenses and immunities under the Wyoming Governmental Claims Act, W.S. § 1-39-101, *et seq.*, and other applicable constitutional and statutory provisions of the State of Wyoming. All legal proceedings shall occur in a court of competent jurisdiction sitting in Laramie County, Wyoming.

18.2. In the event any term or provision of this Agreement be determined by appropriate judicial authority to be illegal or otherwise invalid, such provision shall be given its nearest legal meaning or be construed as deleted as such authority determines, and the remainder of this Agreement shall be construed to be in full force and effect.

18.3. In construing this Agreement, the singular shall be held to include the plural, the plural shall be held to include the singular, the use of any gender shall be held to include every other and all genders, and captions and paragraph headings shall be disregarded.

18.4. All of the exhibits attached to this Agreement are incorporated in, and made a part of, this Agreement.

18.5. This Agreement constitutes the entire understanding and agreement between the parties, and there are no understandings, agreements, representations or warranties except as specifically set forth herein.

18.6. This Agreement may not be changed, altered or modified except by an instrument in writing signed by the party against whom enforcement of such change would be sought.

18.7. This Agreement shall be binding upon the parties hereto and their respective successors and assigns.

18.8. The failure of any party at any time or times to require performance of any provision hereof shall in no manner affect its right at a later time to enforce the same. No waiver by any party of any condition, or of any breach of any covenant, agreement, representation or warranty contained in this Agreement, in any one or more instances, shall be deemed to be or construed as a further or continuing waiver of any such condition or breach or waiver of any other condition or of any breach of any other covenant, agreement, representation or warranty.

18.9. If the final date of any period provided for herein for the performance of an obligation or for the taking of any action falls on a Saturday, Sunday or legal holiday, then the time of that period shall be deemed extended to the next day which is not a Saturday, Sunday or legal holiday. All time periods expiring on a specific date or period herein shall be deemed to expire at 5:00 p.m. Mountain Standard or Mountain Daylight Time, as applicable.

18.10. This Agreement may be executed in any number of counterparts, each of which, when so executed and delivered, shall be deemed original, but such counterparts together shall constitute but one agreement.

18.11. During the term of this Agreement, Seller shall not list the Real Property for sale, rent or exchange or otherwise offer the Real Property for sale, rent or exchange. Seller shall have the right to disclose this Agreement to any lending institution.

IN WITNESS WHEREOF, we have hereunto set our hands this _____ day of _____, 2023.

CITY OF CHEYNNE

By: _____
Patrick Collins, Mayor

(SEAL)
Attest:

Kristina F. Jones, City Clerk

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me by Patrick Collins, Mayor of the City of Cheyenne, this _____ day of _____, 2023.

Witness my hand and official seal.

Notary Public

My commission expires: _____

SELLER:

By: _____
Trace G. Lewark

By: _____
Mary J. Lewark

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me by _____
_____, a duly authorized representative of _____, this
_____ day of _____, 2023.

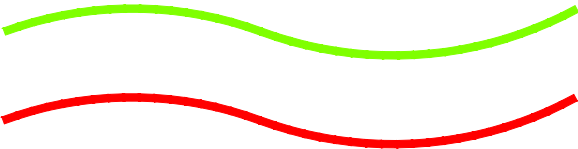
Witness my hand and official seal.

Notary Public

My commission expires: _____



EXISTING GREENWAY
FUTURE GREENWAY



(Space above reserved for Recorder of Deeds certification)

WYOMING RECORDING COVER SHEET

Document Title: Utility Easement Agreement

Document Date: _____

Grantors Name and Address: City of Cheyenne, Wyoming
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

Grantee Name and Address: Trace G. and Mary J. Lewark
814 McGovern Avenue
Cheyenne, WY 82001

Legal Description: See Exhibits A

UTILITY EASEMENT AGREEMENT

THIS UTILITY EASEMENT AGREEMENT ("Agreement") is made as of the _____ day of _____, 2023 ("Effective Date"), by and between the City of Cheyenne, Wyoming, a duly-organized municipal corporation, having an address at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("Grantor"), and Trace G. and Mary J. Lewark, having an address at 814 McGovern Avenue, Cheyenne, WY 82001 ("Grantee"), and collectively referred to with Grantor as, the "Parties").

RECITALS

- A. Grantor is the fee owner of that certain real property located at 700 Gettysburg Drive, Cheyenne, Wyoming, and more particularly described at Exhibit A attached hereto ("10-foot utility easement area").
- B. Grantor desires to convey to Grantee, its successors and assigns, the right to use and occupy the Easement Area for future utilities and other ancillary purposes.

NOW THEREFORE, in consideration of the sum of Ten Dollars (\$10.00) other good and valuable consideration paid by Grantee to Grantor, and the mutual covenants, terms, and conditions set forth herein, the receipt and sufficiency of which is hereby acknowledged, the Parties agree as follows:

- 1. Incorporation of Recitals. The foregoing recitals are true and correct and are expressly incorporated herein by this reference.
- 2. Grant of Easement. Grantor hereby grants and conveys to Grantee, its legal representatives, successors and assigns, and to any future owner of the Benefitted Property, an irrevocable, non-exclusive, appurtenant utility easement (the "Easement") in, under, upon, about, over, and through the Easement Area for the benefit of the Benefitted Property, for purposes of installation, use, maintenance and repairs to a future private water service within the easement area; and any and all other ancillary purposes.
- 3. Easement Description.

A 10-foot utility easement situated in the S1/2 of Section 35, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, extending 5 feet to each side of the following described centerline:

Beginning at a point from which the Southwest corner of said Section 35 bears 254°26'26", a distance of 2837.03 feet, thence 145°40'30", parallel and 5 feet distant from the South line of Sun Valley Addition 14th Filing, a distance of 302.30 feet and said easement there terminates.

- 4. Duration. This Easement shall remain in full force and effect in perpetuity.
- 5. Use of Easement Area. The Easement, rights, and privileges set forth herein shall be for the benefit of Grantee and binding on its successors and assigns, and each of its respective tenants, licensees, customers, employees, agents, invitees, successors and assigns. The Easement, rights, privileges, restrictions, benefits and obligations hereunder shall be covenants running with the land. The covenants set forth in this Agreement shall be binding upon and inure to the benefit of Grantor, its successors, and assigns.

6. Access. Grantee, its employees, contractors, and agents shall have the right of access to the Easement Area twenty-four (24) hours per day, seven (7) days per week.
7. Repairs and Maintenance. During the Term, Grantee shall maintain the Easement Area in good order and condition, and in compliance with applicable governmental laws, ordinances, rules, and regulations. Notwithstanding the foregoing, Grantor shall continue to maintain, throughout the Term, all such portions of the Easement Area that would typically be maintained by Grantor in connection with its obligations for maintenance of public rights-of-way.
8. Damage and Destruction.
 - a. Neither Grantor nor Grantee shall have any responsibility to the other or their respective agents, contractors, tenants, or other invitees in the event of any damage to or theft or loss of any equipment or property of the other party and the party incurring such damage, theft, or loss shall look to its own insurance coverage (and to any self-insured portion of the damage, theft, or loss), if any, for recovery in the event of any such damage, theft, or loss.
 - b. If all, or a portion, of the Easement Area is destroyed or damaged by fire or other casualty, Grantor shall promptly proceed to repair such damage and restore the Easement Area to the condition existing prior to such damage.
9. Indemnification. Each Party to this Agreement assumes the risk of any liability arising from its own conduct. Each Party agrees that it will be responsible for any loss, claim, damages, or demands resulting from its negligence and the negligence of its employees and agents. Neither Party agrees to insure, defend, or indemnify the other.
10. Governmental/Sovereign Immunity. Grantee does not waive its Governmental/Sovereign Immunity, as provided by any applicable law including Wyo. Stat. § 1-39-101, *et seq.*, by entering into this Agreement. Further, Grantor fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law based on this Agreement, with the express exception for an action brought to enforce the terms of this Agreement.
11. Miscellaneous.
 - a. Entire Agreement. This Agreement represents the entire and integrated agreement and understanding between the Parties and supersedes all prior negotiations, statements, representations and agreements, whether written or oral.
 - b. Counterparts. This Agreement may be executed in two or more counterparts, each of which shall be deemed to be an original, but all of which together shall constitute one and the same instrument.
 - c. Governing Law. The Parties mutually understand and agree this Agreement shall be governed by and interpreted pursuant to the laws of the State of Wyoming.
 - d. Section Headings. The section titles herein are for convenience only and do not define, limit, or construe the contents of such sections.
 - e. Attachment and Exhibits. All attachments and exhibits to this Agreement are hereby made a part hereof as if fully set out herein.

- f. Severability. If any provision or provisions in this Agreement is/are found to be in violation of any law or otherwise unenforceable, all other provisions remain unaffected in full force and effect.
- g. Binding Effect. This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and permitted assigns and shall not be amended, waived, or discharged, except by a written instrument, executed by the Parties (or their respective, successors and assigns), and which written document shall be recorded in the real property records of Laramie County, Wyoming.

12. Signatures. In witness whereof, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

GRANTEE:

CITY OF CHEYENNE, WYOMING, a
duly organized municipal corporation

By: _____
Patrick Collins, Mayor

(SEAL)
Attest:

Kristina F. Jones, City Clerk

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

On this _____ day of _____, 2023, before me, the undersigned, personally appeared Patrick Collins, to me personally known, Mayor of the City of Cheyenne, Wyoming, a duly-organized municipal corporation, who executed the within Agreement, and acknowledged to me that he executed the same for the purposes therein stated.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal at my office in the County aforesaid the day and year last above written.

(SEAL)

Printed Name:

Notary Public in and for said State
Commissioned in Laramie County

My Commission Expires:

GRANTOR:

By: _____
Trace G. Lewark

By: _____
Mary J. Lewark

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

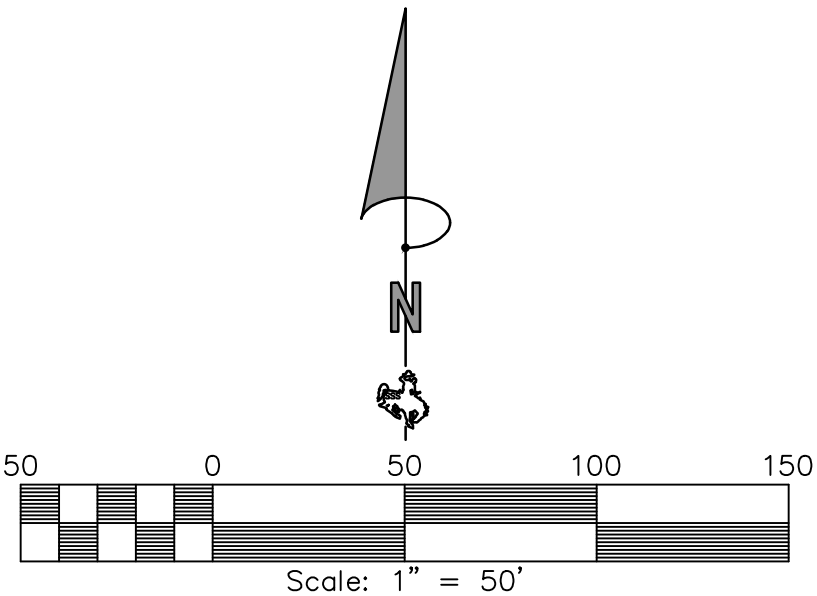
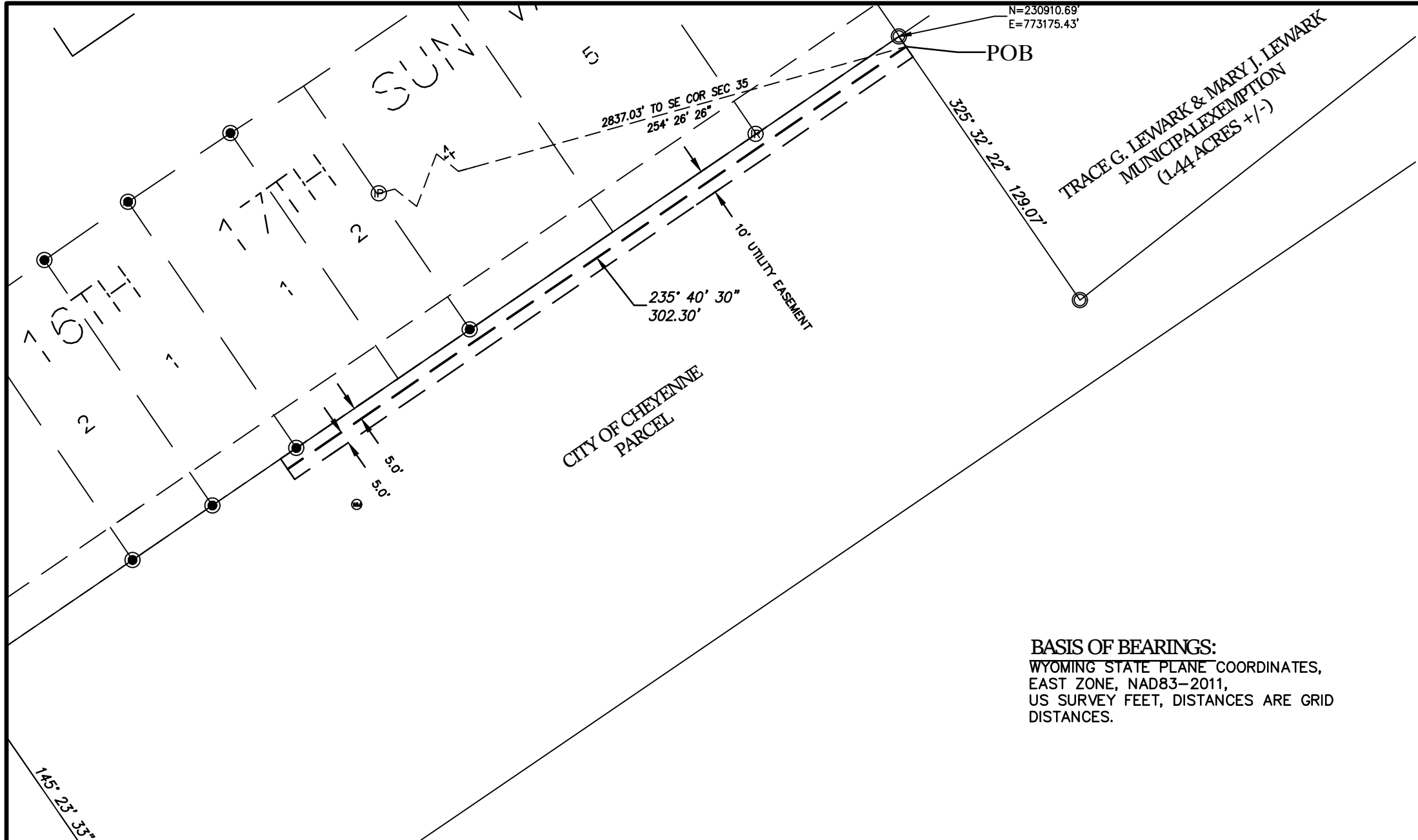
On this _____ day of _____, 2023, before me, the undersigned, personally appeared Trace G. Lewark and Mary J. Lewark, known to me to be the persons who executed the within Agreement and acknowledged to me that they executed the same for the purposes therein stated, and as their free act and deed.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal at my office in the County aforesaid the day and year last above written.

(SEAL)

Printed Name: _____
Notary Public in and for said State
Commissioned in _____ County

My Commission Expires:



BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES.

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

EASEMENT DESCRIPTION

A 10 foot utility easement situated in the S½ of Section 35, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, extending 5 feet to each side of the following described centerline:

Beginning at a point from which the Southwest corner of said Section 35 bears 254°26'26", a distance of 2837.03 feet, thence 145°40'30", parallel and 5 feet distant from the South line of Sun Valley Additon 14th Filing, a distance of 302.30 feet and said easement there terminates.



**EASEMENT
EXHIBIT**

ACROSS

A PORTION OF THE
SOUTH HALF OF SECTION 35,
T.14N., R.66W.,
OF THE 6TH P.M.,
LARAMIE COUNTY, WYOMING

PREPARED JULY, 2023



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 522-9789
www.SteilSurvey.com • info@SteilSurvey.com

(Space above reserved for Recorder of Deeds certification)

WYOMING RECORDING COVER SHEET

Document Title: Access Easement Agreement

Document Date: _____

Grantors Name and Address: Trace G. and Mary J. Lewark
814 McGovern Avenue
Cheyenne, Wyoming 82001

Grantee Name and Address: City of Cheyenne, Wyoming
2101 O'Neil Avenue
Cheyenne, WY 82001

Legal Description: See Exhibits A

PUBLIC FACILITY AND CIRCULATION EASEMENT AGREEMENT

THIS ACCESS EASEMENT AGREEMENT ("Agreement") is made as of the _____ day of _____, 2023 ("Effective Date"), by and between the City of Cheyenne, Wyoming, a duly-organized municipal corporation, having an address at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("Grantee"), and Trace G. and Mary J. Lewark, having an address at 814 McGovern Avenue, Cheyenne, WY 82001 ("Grantor", and collectively referred to with Grantee as, the "Parties").

RECITALS

A. Grantor is the fee owner of that certain real property located at 700 Gettysburg Drive, Cheyenne, Wyoming, and more particularly described at Exhibit A attached hereto (the "Easement Area").

B. Grantor desires to convey to Grantee, its successors and assigns, the right to use and occupy the Easement Area for maintenance and public access and other ancillary purposes.

NOW THEREFORE, in consideration of the sum of Ten Dollars (\$10.00) other good and valuable consideration paid by Grantee to Grantor, and the mutual covenants, terms, and conditions set forth herein, the receipt and sufficiency of which is hereby acknowledged, the Parties agree as follows:

1. Incorporation of Recitals. The foregoing recitals are true and correct and are expressly incorporated herein by this reference.
2. Grant of Easement. Grantor hereby grants and conveys to Grantee, its legal representatives, successors and assigns, and to any future owner of the Benefitted Property, an irrevocable, non-exclusive, appurtenant access easement (the "Easement") in, under, upon, about, over, and through the Easement Area for the benefit of the Benefitted Property, for purposes of pedestrian and vehicular access, ingress and egress; maintenance and repairs to the Easement Area; and any and all other ancillary purposes.

3. Easement Description.

A 40 foot access easement situated in the S½ of Section 35, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at a point from which the Southwest corner of said Section 35 bears 251°15'53", grid azimuth from North, City of Cheyenne Datum, a distance of 3377.36 feet, said point also being a point on the South line of Sun Valley Addition Fourteenth Filing; thence 145°40'30", a distance of 91.51 feet; thence 231°52'57", a distance of 40.09 feet; thence 325°40'30", a distance of 94.16 feet; to the South line of said Sun Valley 14th Filing; thence along said South line,

55"40'30", a distance of 40.00 feet to the point of beginning.

4. Duration. This Easement shall remain in full force and effect in perpetuity.
5. Use of Easement Area. The Easement, rights, and privileges set forth herein shall be for the benefit of Grantee and binding on its successors and assigns, and each of its respective tenants, licensees, customers, employees, agents, invitees, successors and assigns. The Easement, rights, privileges, restrictions, benefits and obligations hereunder shall be covenants running with the land. The covenants set forth in this Agreement shall be binding upon and inure to the benefit of Grantor, its successors, and assigns.
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8. Damage and Destruction.
 - a. Neither Grantor nor Grantee shall have any responsibility to the other or their respective agents, contractors, tenants, or other invitees in the event of any damage to or theft or loss of any equipment or property of the other party and the party incurring such damage, theft, or loss shall look to its own insurance coverage (and to any self-insured portion of the damage, theft, or loss), if any, for recovery in the event of any such damage, theft, or loss.
 - b. If all, or a portion, of the Easement Area is destroyed or damaged by fire or other casualty, Grantor shall promptly proceed to repair such damage and restore the Easement Area to the condition existing prior to such damage.
9. Indemnification. Each Party to this Agreement assumes the risk of any liability arising from its own conduct. Each Party agrees that it will be responsible for any loss, claim, damages, or demands resulting from its negligence and the negligence of its employees and agents. Neither Party agrees to insure, defend, or indemnify the other.
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including Wyo. Stat. § 1-39-101, *et seq.*, by entering into this Agreement. Further, Grantor fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law based on this Agreement, with the express exception for an action brought to enforce the terms of this Agreement.

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CITY OF CHEYENNE, WYOMING, a
duly organized municipal corporation

By:

Patrick Collins, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk

STATE OF _____)
) ss.
COUNTY OF _____)

On this _____ day of _____, 2023, before me, the undersigned, personally appeared Trace G. Lewark and Mary J. Lewark, known to me to be the persons who executed the within Agreement and acknowledged to me that they executed the same for the purposes therein stated, and as their free act and deed.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal at my office in the County aforesaid the day and year last above written.

(SEAL)

My Commission Expires:

Printed Name: _____
Notary Public in and for said State of Wyoming
Commissioned in _____ County

GRANTOR:

By: _____
Trace G. Lewark

By: _____
Mary J. Lewark

STATE OF _____)
) ss.
COUNTY OF _____)

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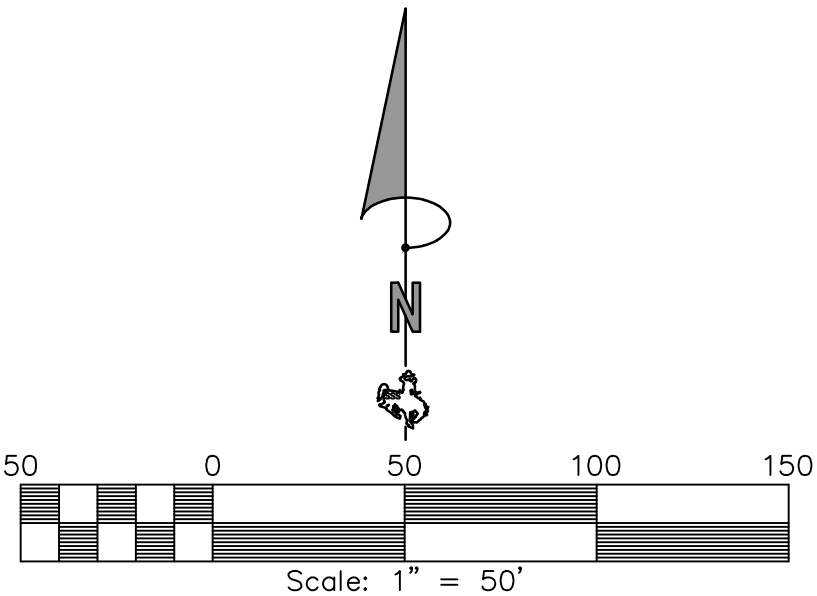
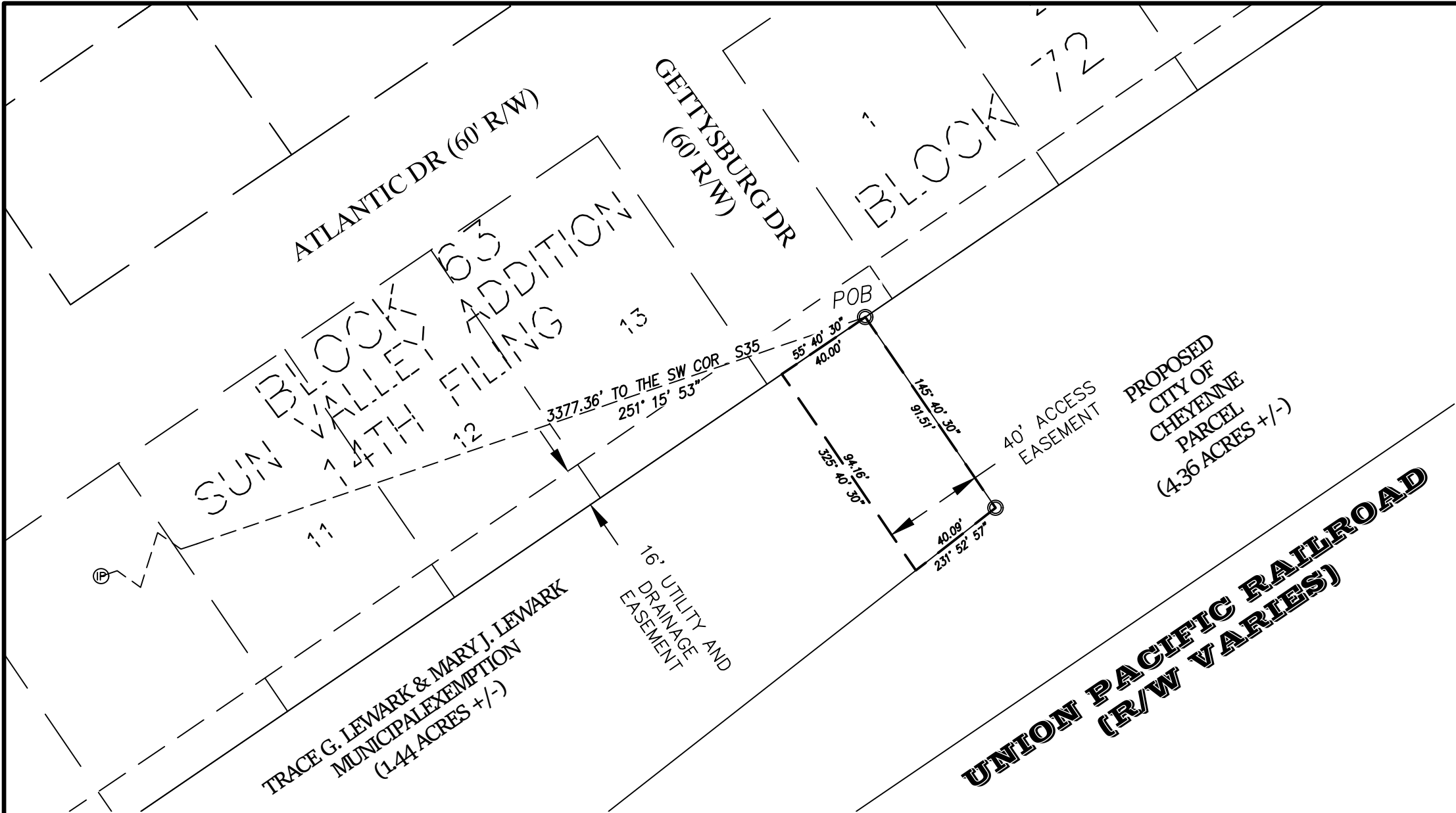
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Printed Name: _____
Notary Public in and for said State of Wyoming
Commissioned in _____ County

© COPYRIGHT 2023 STEIL SURVEYING SERVICES, LLC ALL RIGHTS RESERVED



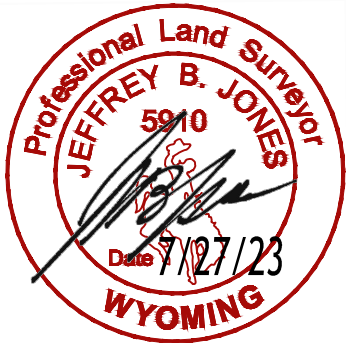
CERTIFICATE OF SURVEYOR

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**EASEMENT
EXHIBIT**

ACROSS

A PORTION OF THE
SOUTH HALF OF SECTION 35,
T.14N., R.66W.,
OF THE 6TH P.M.,
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PREPARED JULY, 2023



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REVISED: 7/27/2023
23141 LEWARK EASEMENT.DWG